

cers. He is entitled not only to ask legitimate questions but also to have them answered, unless there is some persuasive reason to the contrary.

Insufficient attention has been paid to this all-important point. The courts have generally held that a bona fide stockholder has the same right to full information as a partner in a private business. This right may not be exercised to the detriment of the corporation, but the burden of proof rests upon the management to show an improper motive behind the request or that disclosure of the information would work an injury to the business.

Compelling a company to supply information involves expensive legal proceedings and hence few shareholders are in a position to assert their rights to the limit. Experience shows, however, that vigorous demands for legitimate information are frequently acceded to even by the most recalcitrant managements. This is particularly true when the information asked for is no more than that which is regularly published by other companies in the same field.

INFORMATION REGARDING THE INDUSTRY

Statistical data respecting industries as a whole are available in abundance. The *Survey of Current Business*, published by the United States Department of Commerce, gives monthly figures on output, consumption, stocks, unfilled orders, etc., for many different lines. Annual data are contained in the Statistical Abstract, the World Almanac, and other compendiums. More detailed figures are available in the Biennial Census of Manufactures.

Many important summary figures are published at frequent intervals in the various trade journals. In these publications will be found also a continuous and detailed picture of the current and prospective state of the industry. Thus it is usually possible for the analyst to acquire without undue difficulty a background of fairly complete knowledge of the history and problems of the industry with which he is dealing.

In recent years the leading statistical agencies have developed additional services containing basic surveys of the principal industrial groups, supplemented frequently by current data designed to keep the basic surveys up to date.⁹

⁹ For description of these services see *Handbook of Commercial and Financial Services*, Special Libraries Association, New York, 1939.